IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for Bail in terms of section 83 (2) of the Poisons, Opium and Dangerous Drugs (Amendment) Act No. 41 of 2022.

CA Case No: BAL/374/2023
MC- Kesbewa
Case No: B/1633/22

Officer-in-Charge,
Police Station,
Mount Lavinia.

Complainant

Vs.

Meringage Dhanushka Prasadh,
No. 291/A, U.D.T. Wimal Perera Mawatha,
Miriswatte, Piliyandala.

Suspect

And Now Between

Athurusinhage Shyamali Sandamali,
No. 291/A, U.D.T. Wimal Perera Mawatha,
Miriswatte, Piliyandala.

Petitioner

Vs.

The Officer-in-Charge,
Police Station,
Mount Lavinia.

Complainant - Respondent

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Respondent

Meringage Dhanushka Prasadh,
No. 291/A, U.D.T. Wimal Perera Mawatha,
Miriswatte, Piliyandala.

Suspect- Respondent

Before: **R. Gurusinghe J.**

&

M.C.B.S. Morais J.

Counsel: Mohan Senevirathne with Nuwan Rathnayake for the Petitioner.

Jayalakshi De Silva, SSC for the Respondents.

Inquiry on: 11.03.2024

Decided On: **02.05.2024**

M.C.B.S. Morais J.

The petitioner is the wife of the suspect in the case bearing number B/1633/22 in the Magistrate's Court of Kesbewa. Though the petitioner states that the suspect was arrested on 31st of July 2022, as for the 'B' report, the suspect was arrested on the 1st of August 2022 and produced before the Magistrate Court of Kesbewa on the 2nd of August 2022. According to the 'B report' dated 02nd of August 2022, the suspect was arrested for being in possession of an Automatic Firearm and aiding and abetting for committing a murder. After the arrest, the police questioned the suspect and on information extracted, 503 grams of 'Diacetylmorphine' alias 'Heroin' was recovered from a vehicle bearing No. DAE-9420 hidden at 1st Lane, Galabadawatte, S.O.S Road, Kesbewa. Subsequent to the Report of the Government Analysts the pure quantity of said Heroin is said to be 60.4 grams.

The petitioner has made this application before us under section 83 of the Poisons, Opium and Dangerous Drugs (Amendment) Act, No.41 of 2022. As for the provisions of section 83(2),

> *"83(2) notwithstanding the provisions of sections 84 and 85, a person suspected or accused of an offence under subsection (1) of section 54A and section 54B-*
>
> *(a) of which the pure quantity of the dangerous drug, trafficked, imported, exported, or possessed is ten grams or above in terms of the report issued by the Government Analyst under section 77A; and*
>
> *(b) Which is punishable with death or life imprisonment, shall not be released on bail except by the Court of Appeal in exceptional circumstances."*

The statute does not clarify what exceptional circumstances are. When granting bail to suspects under the Ordinance, our Superior Courts have taken into account a number of circumstances that qualify as exceptional.

In, ***Ramu Thamotharampillai V. The Attorney General* [2004] 3 SLR 180**, it was held that;

> *"the decision must in each case depend on its own peculiar facts and circumstances."*

In, ***Labynidarage Nishanthi V. Attorney General* CA (PHC) APN 48/2014)**, said that;

> *"…the term 'exceptional circumstances' has not been explained or defined in any of the statutes. Judges are given a wide discretion in deciding in what creates a circumstance which exceptional in nature."*

In, ***Welathanthrage Amila Sampath Botheju V. Attorney General* CA/BAL/0239/23**, it was held that;

> *"…a certain situation amounts to exceptional circumstances or not, has to be considered on a case-by-case basis, unique to each application before the court."*

When applied in relation to the facts before us, in paragraph 19 of the petition, the petitioner pleads that certain averments contained in the petition therein are alleged as exceptional grounds and they are as follows:

- Improbability of the prosecution case.
- No person suspected or accused of committing offence under the Poisons, Opium and Dangerous Drugs (Amendment) Act, No.41 of 2022 shall not be detained in custody for a period exceeding 12 months from the date of his arrest unless convicted.

Though the petitioner alleges that the suspect was arrested on the 31st of July 2022, on perusal of the material submitted by the petitioner, I do not find any to substantiate such.

According to the pictures annexed as P5(a), P5(b), P5(c), P5(d), P5(e), and the Compact Disk of the video recording obtained from the CCTV camera annexed as P6, by the petitioner, a police jeep bearing number NE 0790 was traveling behind a car bearing number CAH 0496. Through the aforesaid pictures and the CCTV footage, the petitioner is unable to prove the illegal arrest and the detention.

As for the initial 'B report' dated 02nd of August 2022, filed at the Magistrate's Court of Kesbewa by the complainant-respondent states thus;

*"තවද මෙම සැකකරුගෙන් ප්‍රශ්න කිරීමේ දී ඔහු විසින් **පළවන පටුමග, ගලබඩවත්ත, එස්.ඕ.එස්. පාර, කැස්බෑව ලිපිනයේ වත්තක** සඟවා තිබූ එල්ලාවල ලියනගේ ධර්මසිරි නොහොත් පැටියාට අයත් අංක DAE 9420 ලොරි රථයේ අගුලු දමා ඇති බොඩිය තුළ බෑගයක බහා තිබූ පාර්සලයක් හමු වී ඇති අතර එය පරීක්ෂා කිරීමේ දී එහි හෙරොයින් බවට අනාවරණය කර ගැනීමෙන් අනතුරුව අංක. 291 විමල් පෙරේරා මාවත, මිරිස්වත්ත, පිළියන්දල ලිපිනයේ පදිංචි මෙරිඥ්ඥගේ දනුෂ්ක ප්‍රසාද් යන අය පැය 17.35 ට අත්අඩංගුවට ගෙන ඇත."*

However, the further report dated 10th of August 2022, filed at the Magistrate's Court of Mount Lavinia, by the Sub Inspector of Police Neel Priyantha Silva states that;

*"මෙම අවස්ථාවේ **සැකකරුගේ නිවස සහ නිවසේ තිබූ වාහන පරීක්ෂා කිරීමේ දී** අංක. WP DAE 9420 දරන මහේන්ද්‍රා වර්ගයේ ලොරි රථයක සඟවා තිබූ හෙරොයින් ග්‍රෑම් 503 ක ප්‍රමානයක් සහ දේපල කීපයක් අත්අඩංගුවට ගෙන ස්ථානයට ඉදිරිපත් කිරීමෙන් අනතුරුව කැස්බෑව මහේස්ත්‍රාත් අධිකරනයේ නඩු අංක බී.ආර්. 1633/22 යටතේ ගරු අධිකරනය වෙත ඉදිරිපත් කර 2022.08.08 වන දින දක්වා රක්ෂිත බන්ධනාගාර ගත කර ඇති අතර 2022.08.10 වන දිනට ගරු ගල්කිස්ස මහේස්ත්‍රාත් අධිකරනයේ නඩු අංක බී 3713/22 යටතේ ඉදිරිපත් කිරීමට බන්ධනාගාර අධිකාරීවරයා වෙත ගරු කැස්බෑව මහේස්ත්‍රාත් තුමා විසින් නියෝග කර ඇත.*

*මෙම සැකකරු හට සැකකරු නුවන් චින්තක විසින් 2022.07.27 වන දින අපරාධය සිදු කිරීමෙන් පසු අපරාධය සිදු කිරීමට යොදා ගන්නා ලද ගිනි අවිය ගෙනවිත් භාර දුන් බවත් ඔහු එම ගිනි අවිය CAH 0496 දරන අළුපැහැති සුසුකි ඇල්ටෝ වර්ගයේ කාර් රථයේ සඟවා තැබූ බවත් **නිවසේ මිදුලේ** නවතා තිබූ අංක WP DAE 9420 දරන මහේන්ද්‍රා වර්ගයේ ලොරි රථය ධර්මසිරි පෙරේරා යන අයගේ දැනුම් දීම මත ගෙනැවිත් නවතා තිබූ බවට ප්‍රකාශ කර ඇත."*

As for the said 'B report' on 02nd of August 2022, filed at the Magistrate's Court of Kesbewa, the respondents inform that the Heroin was recovered from a vehicle parked at 1st Lane, Galabadawatta, S.O.S. Road, Kesbewa whereas on a further report filed at Magistrate's Court of Mount Lavinia on 10th of August 2022, the respondents state that the said vehicle contained Heroin was parked at suspect's residence, it is said to be No. 291/A, U.D.T. Wimal Perera Mawatha, Miriswatte, Piliyandala. Therefore, it seems on the face of it, there is a discrepancy in between these two versions.

In my view, this glaring discrepancy as for the recovery of narcotics is an exceptional ground which should be considered in suspect's favour, irrespective of the explanation which would be offered at the trial.

Therefore, I am of the view that this is a fit and proper case to grant bail and accordingly, bail is granted on the following conditions.

1. The suspect should provide a cash bail of Rs. 200,000.
2. To provide two acceptable sureties to the satisfaction of the Learned Magistrate. They must sign a bond of Rs. 1,000,000/= each.
3. Suspect should report to the officer in charge of the police station Mount Lavinia on every first Sunday of the month until the conclusion of the matter.
4. The bail should be cancelled and/or confiscated upon this suspect being arrested again in connection with another offence alleged to have been committed while on bail or on violation of any of the bail conditions.
5. To surrender the passport of the suspect if any, to the court. A travel ban is imposed on the suspect. The controller of Immigration and Emigration is to be informed of the travel ban of the suspect.

6. The permanent residing address of the suspect should be provided to the court, and such residence should not be changed without leave of the court until the conclusion of the case.

Subject to the conditions set out above, bail is granted. The registrar of this court is directed to send copies of this bail order to the Magistrate Court of Kesbewa, and also to the Officer in Charge of Police Station Mount Lavinia to inform the due compliance to the relevant court.

Judge of the Court of Appeal

R. Gurusinghe J.

I agree

Judge of the Court of Appeal